

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO SPECIAL MOTION
TO STRIKE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pincite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pincite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pincite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- 1 • **Pincite / Source:** Order CA1147102-021
 - 2 • **Who had notice:** PSA
 - 3 (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - 4 • **Proof artifact:** PSA receives production from SFPD
 - 5 • **Pincite / Source:** Report 210079556
 - 6 • **Who had notice:** PSA
 - 7 (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - 8 • **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - 9 • **Pincite / Source:** FROG/SROG records
 - 10 • **Who had notice:** PSA
 - 11 (h) **Feb. 18, 2025 — Jessup (“since 2021”)**
 - 12 • **Proof artifact:** Jessup testifies “since 2021”
 - 13 • **Pincite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11
 - 14 • **Who had notice:** PSA
 - 15 (i) **Apr. 16, 2025 — Admission of receipt**
 - 16 • **Proof artifact:** **ADMISSION OF RECEIPT**
 - 17 • **Pincite / Source:** RT 7, 213:13-15
 - 18 • **Who had notice:** PSA
-

20 **III. THE LAWS-BROKEN MATRIX**

- 21 (a) **Bus. & Prof. Code § 6068(d)**
- 22 • **Provision:** Duty not to mislead judge
- 23 • **Defense conduct:** Jan 27, Feb 18 denials re receipt
- 24 (b) **Bus. & Prof. Code § 6128(a)**
- 25 • **Provision:** Attorney deceit / collusion
- 26 • **Defense conduct:** Intentional deception re: file transfer and receipt
- 27 (c) **Cal. Rule of Prof. Conduct 3.3(a)**
- 28 • **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Anti-SLAPP Must Be Denied

Defendants attempt to use Anti-SLAPP step one to shield extrinsic fraud and process corruption. Under Park and Bonni, the court must identify the injury-producing act. Here, the injury-producing acts are out-of-court lulling, the stripped file transfer, and the procurement of rulings by

1 deception—none of which qualify as protected petitioning. Even if prong one were reached, the
2 record evidence (the “Smoking Gun”) establishes a probability of prevailing that far exceeds the
3 minimum-merit standard.

4 **§I.F — Posture Note: The SAC Is Offered as Gravamen Clarification, Not as a Simmons**
5 **End-Run**

6 Plaintiff has concurrently moved for leave to file a Second Amended Complaint (SAC) (see SAC-
7 01 through SAC-07). Plaintiff does not contend that the SAC moots or avoids this anti-SLAPP
8 motion. (Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1073–1074; Salma v. Capon
9 (2008) 161 Cal.App.4th 1275, 1293–1294 [amendment cannot defeat a pending anti-SLAPP].)
10 The SAC is submitted to the Court for two permissible purposes only: (i) as the current, more
11 particularized articulation of the same injury-producing acts the FAC already pleads, useful to
12 the Park/Bonni gravamen analysis; and (ii) as Plaintiff’s specific, tendered proffer if the Court
13 reaches leave to amend under § 425.16 jurisprudence. Nothing in this Opposition asks the Court
14 to substitute the SAC for the FAC as the operative pleading on this motion.

15 Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants
16 is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

17
18 **I-A. WHY THIS CASE IS OUTSIDE PRONG ONE EVEN THOUGH IT**
19 **AROSE AROUND LITIGATION**

20 Not every act occurring during litigation is a protected act under CCP § 425.16. The Supreme
21 Court has repeatedly insisted that the court must first identify the specific **injury-producing act**
22 underlying each claim, and only then classify that act as protected petitioning (or not). (Park, 2
23 Cal.5th at 1062-1063; Bonni, 11 Cal.5th at 1010-1012; Wilson v. Cable News Network, Inc. (2019)
24 7 Cal.5th 871, 884.)

25 Defendants collapse “litigation-adjacent” with “protected.” That is legal error. The FAC’s grava-
26 men lies in:

- 27 (a) out-of-court lulling,
28 (b) file-transfer concealment to successor counsel, and

1 (c) induced procedural rulings.

2 The first two are not communicative petitioning at all. The third is the downstream consequence
3 of the first two, not the injury-producing act itself. Even a case that arose “around” the underlying
4 litigation is outside prong one where the acts that produced the injury are institutional, noncom-
5 municative, or extrinsic to the merits adjudication.

7 **II. STEP-ONE GRAVAMEN DEMAND UNDER PARK AND BONNI**

8 **A. The Mandatory Two-Step Framework**

9 Under *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76, the anti-SLAPP analysis proceeds in
10 two steps:

11 **Step One:** Does the challenged claim arise from protected activity? **Step Two:** If yes, has the
12 plaintiff demonstrated a probability of prevailing?

13 Defendants collapse these two steps. They assume that because their conduct occurred during
14 litigation, the analysis automatically proceeds to step two. This is wrong.

15 **Mandatory parsing — Baral and Wilson.** Even where some allegations touch protected activity,
16 the court must isolate the gravamen and may strike **only** allegations of protected activity, not an
17 entire mixed-conduct complaint. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The step-one inquiry
18 “requires evaluating the defendant’s asserted protected activity in the context of the entire conduct
19 upon which the plaintiff’s claim is based,” including identifying the specific **acts on which liability**
20 **is based** and whether those acts themselves qualify as protected speech or petitioning. (*Wilson v.*
21 *Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) Defendants’ monolithic “entire FAC”
22 framing contradicts both holdings.

23 **B. Park Requires Gravamen Isolation**

24 In *Park v. Bd. of Trustees* (2017) 2 Cal.5th 1057, 1062-1063, the California Supreme Court
25 clarified the step-one analysis:

26 “In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action
27 itself was based on an act in furtherance of the defendant’s right of petition or free
28 speech.” (*Park*, 2 Cal.5th at 1062)

1 The Court must identify the specific **injury-producing act** on which the claim rests and determine
2 whether **that act** is protected petitioning activity. Labels like “litigation conduct” are not self-
3 proving.

4 **C. Defendants Skip the Gravamen Analysis**

5 Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong
6 supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22) But Defendants use Park at step two as
7 part of a privilege block, assuming the answer at step one.

8 The FAC’s gravamen is not “speech or petitioning activity itself.” The FAC’s gravamen is:

- 9 1. Out-of-court communications that led Plaintiff to believe authentication of evidence was un-
10 contested
- 11 2. The file transfer without proper conveyance of production history
- 12 3. Court-facing misrepresentations that induced procedural rulings narrowing Plaintiff’s win-
13 dows
- 14 4. Tribunal reliance producing structural hearing impairment

15 These are not attacks on litigation itself. They are attacks on extrinsic fraud and tribunal reliance.
16 For **Count 7 (constructive fraud, Civ. Code § 1573)** on the proposed SAC, the injury-producing
17 gravamen is the **breach of a duty of candor** to the tribunal and the parallel institutional custody
18 failures, not the fact of petitioning motions or trial advocacy. Park therefore does not collapse
19 Count 7 into protected petitioning merely because MILs were filed.

20 **D. Martinez as Discipline, Not Slogan**

21 Defendants cite Martinez v. Metabolife Inter’l, Inc. (2003) 113 Cal.App.4th 181, 188 for the
22 “principal thrust” test. But Martinez is a discipline for identifying the gravamen, not a magic word
23 that resolves step one. The principal thrust test asks: What is the act that actually produces the
24 injury?

25 Here, the injury-producing acts are noncommunicative institutional failures and misrepresenta-
26 tions, not petitioning itself.

E. Claim-by-Claim Bonni Matrix

Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010-1012 requires the court to parse each claim and each alleged act separately. Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 further requires that the act be an **element** of the claim, not merely evidence of it. Applied here:

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
1 – Extrinsic Fraud / Fraud on the Tribunal	Deception operating outside the adversary contest	Out-of-court lulling communications that induced Plaintiff to forgo authentication/subpoena work before trial	No – out-of-court conduct aimed at Plaintiff, not petitioning a tribunal	FAC ¶¶ 2, 29–33
2 – Fraud / Intentional Misrepresentation	False representation + reliance + damages	Representations that evidence authentication was uncontested, made off-record to Plaintiff	No – communicative but not petitioning; directed to opposing party, not to the court as petition	FAC ¶¶ 40–43

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
3 – Negligent Misrepresentation / Breach of Institutional Duty	Breach of file-custody and production-history-conveyance duty on substitution	File transfer to PSA without conveying production history	No – noncommunicative institutional conduct (Kimmel/Rusheen line)	FAC ¶¶ 34–39
4 – Aiding & Abetting / Agency (CSAA)	Direction, funding, ratification of tortious conduct by principal	CSAA direction/ratification of the file-transfer and litigation positions	No – noncommunicative oversight conduct	FAC ¶¶ 7, 48–55
5 – Procurement-Level Process Corruption	Inducement of procedural ruling through false provenance representation	Court-facing statements that induced exclusion ruling	Communicative, but (a) the injury-producing act for the claim is the procurement of the ruling by deception (illegal-conduct exception) and (b) extrinsic fraud is an element, not the speech	FAC ¶¶ 40–47

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
7 – Constructive Fraud (Civ. Code § 1573)	Duty of candor; misleading act or nondisclosure; inducement; harm (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415)	Same Nine-Point Receipt Chain and officer-of-the-court reliance as Counts 2–3, without scienter	No – mixed <u>Kimmel</u> institutional acts and <u>Action Apartment</u> tribunal channels; <u>Flatley</u> backstop	SAC ¶¶ 157–165

The label “litigation conduct” does not survive the Bonni element-level parse. Each injury-producing act, examined individually, is either noncommunicative (file transfer and principal oversight), aimed outside the tribunal (out-of-court lulling), or within the illegal-conduct/extrinsic-fraud exception (court-facing procurement).

II-A. ACT-BY-ACT PRONG ONE TABLE

The court should analyze each alleged act separately rather than in the aggregate. Defendants’ principal move is to fuse the acts; the table below forces the Bonni element-level review.

Alleged Act	Who Did It	Why Not		Plaintiff's	Supporting Evidence
		Communicative / Noncommu-	Protected / Exception Applies	Contemporaneous Objection / Preservation	
Out-of-court communications lulling Plaintiff into non-action regarding authentication	Carbone, Chambers (underlying counsel)	Communicative, but not petitioning — directed at opposing party, not a tribunal	Not “in connection with an issue under consideration by a judicial body” as against Plaintiff; outside § 425.16(e)	N/A (lulling occurred before Plaintiff had notice of problem)	Plaintiff Decl. ¶¶ 7–10; defense MPA, p.6 framing
File transfer to PSA without conveying production history	Carbone, Chambers; ratified by CSAA	Noncommunicative (institutional custody/transfer act)	Kimmel/Rusheen “necessarily related” test fails; institutional duty existed independent of any privileged communication	N/A (institutional act outside courtroom)	Substitution of Attorney (May 4, 2023); defense MPA, p.6 (“without ensuring proper documentation”)

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
MIL 17 “unknown provenance” filing (Jan. 17, 2025)	PSA (Navaratnas- ingham)	Communicative	Flatley illegal- conduct exception; extrinsic fraud	Jan. 27, 2025: Plaintiff stated “suppress” on record (Hr’g Tr. p. 19) and cited FROG/SROG pincites (Hr’g Tr. p. 32)	CT Vol. 1, p. 238; Hr’g Tr. Jan. 27, 2025
“News to me” representation (Feb. 18, 2025)	Navaratnasingham	Communicative	Illegal conduct— same-day contradiction (p. 141 vs. p. 181) establishes scienter	Feb. 18, 2025: Plaintiff stated “concealed” and “going on the record” (Hr’g Tr. pp. 17, 44–45)	Hr’g Tr. Feb. 18, 2025, pp. 141, 181

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contempora- neous Objection / Preservation	Supporting Evidence
CSAA direction, funding, ratification of litigation position	CSAA	Noncommunicat (institutional oversight)	Not petitioning; commercial- insurance administrative conduct	N/A (principal oversight)	FAC agency ¶¶; Civ. Code § 2338
Procedural- window narrowing (induced continuance denial / exclusion ruling)	Court, induced by defense	Result of the injury- producing acts, not itself the claim's gravamen	Park requires analysis of the injury- producing act, not downstream rulings	Jan. 27, 28; Feb. 3, 18: All four Plaintiff procedural vehicles denied	Minute orders; trial transcript

The third column (“Plaintiff’s Contemporaneous Objection / Preservation”) shows the Court has **already heard** each suppression vector in open court. Plaintiff preserved objections on four separate hearing dates. This further distances the present action from any “retry the same case” characterization—Plaintiff was procedurally foreclosed, not silent.

II-B. EVEN IF SOME ACTS ARE PROTECTED, THE CLAIM DOES NOT ARISE FROM PROTECTED ACTIVITY IN SUBSTANCE

If the court concludes that one or more sub-acts (e.g., a specific court-facing statement) were communicative petitioning, the motion still fails. Under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, only allegations of protected activity are subject to striking; the claim as a whole survives if it rests substantially on unprotected conduct. Under *Park*, 2 Cal.5th at 1064, conduct that merely provides “evidentiary support” for a claim does not supply arising-from status.

Here, even subtracting any assertedly protected sub-acts:

- the out-of-court lulling (aimed at Plaintiff, not a tribunal) remains;
- the file-transfer concealment (noncommunicative institutional act) remains;
- the CSAA direction/ratification (noncommunicative oversight) remains.

The claim’s substance rests on this unprotected core. At most, Defendants have identified evidentiary cousins to protected activity — and *Park* expressly forbids converting evidentiary support into arising-from.

III. CONDUCT VS. COMMUNICATION: THE KIMMEL LINE

A. Civil Code Section 47(b) Protects Communications, Not All Conduct

Defendants assert blanket immunity under Civil Code section 47(b), reproducing the statute and a four-part gloss on the litigation privilege. (Anti-SLAPP MPA, pp. 8–9, ll. 1–28 [*L.G. v. M.B.* formulation and related privilege string cites].) But the litigation privilege protects qualifying **communications**, not every act during litigation.

B. The Kimmel Boundary

Kimmel v. Goland (1990) 51 Cal.3d 202, as discussed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057, establishes the strict boundary between protected communications and unprotected noncommunicative conduct.

The FAC alleges noncommunicative institutional acts: - File custody failures during the file transfer from Carbone/Chambers to successor counsel - Production-history omission on substitution

- Agency oversight failures by CSAA as institutional principal - Procedural-window narrowing through noncommunicative process failures

These allegations do not reduce to “speech or petitioning activity itself.”

C. Gravamen Matrix — File-Transfer Failure (Analyzed Separately)

The file-transfer failure is a discrete, noncommunicative institutional act. Defendants’ MPA (p.6) acknowledges the transfer occurred “without ensuring proper documentation.” That act is a pre-substitution custody failure by prior counsel, executed by and ratified by CSAA as the institutional principal. It is not a communication to any tribunal; it is a custodial hand-off between law firms.

Defense Abstraction	FAC Actual Act	Classification
“Litigation activity”	File transfer to PSA without production-history conveyance	Noncommunicative institutional conduct (outside § 47(b) and § 425.16)
“Privileged representation”	CSAA direction/ratification of file-transfer defect	Noncommunicative oversight conduct by commercial insurer

C-1. Gravamen Matrix — Court-Facing Misrepresentation (Analyzed Separately)

The court-facing misrepresentation is a distinct, communicative act — but one falling within the extrinsic-fraud and illegal-conduct exceptions. This act is downstream of, and made possible by, the file-transfer failure; it must not be blended with it.

Defense Abstraction	FAC Actual Act	Classification
“Protected petitioning”	Court-facing statements as to evidence provenance that induced exclusion ruling	Communicative, but procurement of ruling by deception — extrinsic fraud / illegal conduct (Flatley exception)

Defense Abstraction	FAC Actual Act	Classification
“Communications made during proceedings”	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme; lulling phase not petitioning at all

The Court should apply Park and Bonni at the proper level of abstraction to each act separately. The defense’s labels do not survive gravamen analysis when the file-transfer and court-facing acts are held apart.

D. Rusheen’s “Necessarily Related” Test Is Not Satisfied

Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058 holds that noncommunicative acts receive § 47(b) protection only where they are “**necessarily related**” to a privileged communication. The inverse follows: where a noncommunicative act is **not** necessarily related to a privileged communication, it falls outside the privilege and, by extension, outside the prong-one umbrella Defendants attempt to import from § 47(b).

The file-transfer, production-history conveyance, and CSAA agency-oversight acts are pre- and post-litigation institutional duties. They exist independent of any specific privileged communication: the duty to convey a file accurately to successor counsel on substitution is a general custodial and professional obligation, not the execution of any particular courtroom filing. (See Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600, 611 [noncommunicative acts outside privilege scope].) The “necessarily related” hook is absent. Rusheen therefore does not sweep these acts into protected-activity status.

E. Silberg’s Four-Part Test Does Not Erase the Conduct/Communication Line or the Extrinsic-Fraud Exception

Defendants’ papers invoke the familiar four-part formulation for the litigation privilege (Silberg v. Anderson (1990) 50 Cal.3d 205, 212–214) as if it were a universal solvent. Silberg describes when a **communication** in a judicial proceeding is privileged; it does not convert institutional file-custody acts into “communications.” Rusheen, supra, 37 Cal.4th at page 1058, cautiously extends § 47(b) only to noncommunicative acts **necessarily related** to an underlying privileged commu-

1 nication — a narrow tether Defendants’ briefing does not satisfy for the May 4, 2023 transfer
2 allegations.

3 Nor does Silberg address the intersection of § 47(b) with **extrinsic fraud**. Action Apartment
4 Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–1247 reaffirms that extrinsic fraud
5 is an exception to the litigation privilege. Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970
6 supplies the conduct-versus-communication boundary in the post-Rusheen landscape: not every
7 act “during” litigation is a privileged communication merely because counsel performed it.

8

9 **IV. THE ILLEGAL-CONDUCT AND EXTRINSIC-FRAUD STRAND OF**
10 **FLATLEY**

11 Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325, conduct that is illegal as a matter of law
12 cannot be protected petitioning. Where, as here, (i) the trial court expressly articulated reliance
13 on defense counsel’s officer-of-the-court candor (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7), and (ii)
14 the certified record later established defense counsel’s admission that the very materials she had
15 denied receiving were “provided by Dolan” (RT 7, Apr. 16, 2025, p. 213, ll. 13–15), the inducing
16 representation is knowingly false as a matter of law. Section 425.16 does not protect it.

17 The Court’s February 28, 2025 articulation is dispositive:

18 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
19 They are an officer of the Court, and they are supposed to conduct themselves appropri-
20 ately before the Court.”

21 — Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:4.

22 That institutional reliance was misplaced, as the April 16, 2025 admission demonstrates. The
23 resulting burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I
24 won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was procured through the very
25 candor the Court relied upon.

IV-A. Scienter is Evident From Defendants’ Own In-Court Contradictions Within a Three-Week Window

Before reaching Defendants’ Flatley arguments, the Court should observe that the scienter requirement for the illegal-conduct exception is satisfied by **Defendants’ own hearing and trial transcripts**. The Judicial Admission Matrix (lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) documents:

Date	Position A (denial/suppression)	Position B (admission/possession)
Jan. 17, 2025	MIL 17: “no production” / “no idea”	—
Jan. 27, 2025	Defense opposes continuance	Plaintiff: “suppress” on record (p. 19)
Jan. 28, 2025	Defense § 581(d) dismissal motion	Court: “immediate reversal” (p. 90)
Feb. 3, 2025	Defense renews § 581(d) under submission	Ex parte disclosure order (pp. 109, 116, 122–124)
Feb. 18, 2025	“news to me” (p. 141)	same hearing : “all this stuff has been in his possession since August” (p. 181)
Apr. 16, 2025	Stacked foundation attacks	“They were provided by Dolan. . .” (RT 7, p. 213)

The Laws-Broken Matrix (Flatley “Illegal as a Matter of Law” Proof)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion (misdemeanor)	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 8.4(c)	Dishonesty, fraud, deceit	Pattern across four hearings.
CCP § 128.5	Bad-faith actions	Procurement of exclusion through false statements.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor; additional illegality hook alongside § 6128(a).

Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320, conduct that is **illegal as a matter of law**—including fraud on the court—falls outside § 425.16 protection. The **three-week whipsaw** between Position A (Jan. 17 MIL) and Position B (Feb. 18 p. 181) establishes illegality conclusively, not just as a factual dispute. The Feb. 18 intra-hearing contradiction (p. 141 vs. p. 181) was made by the **same attorney** on the **same day**—foreclosing any “ignorance” narrative.

A. Defendants’ Selective Reading of Flatley

Defendants quote Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 extensively for its policy paragraph on “finality of judgments”:

“[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result.” (Anti-SLAPP MPA, p.9, ll.17-21, quoting Flatley, 39 Cal.4th at 322)

B. The Illegal-Conduct Exception — Narrow, But Applicable

Defendants quote Flatley’s finality paragraph without addressing Flatley’s illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning activity is illegal

1 as a matter of law — either conceded or established as a matter of law — it loses Anti-SLAPP
2 protection. Plaintiff acknowledges that the exception is narrow and does not extend to merely
3 disputed illegality. (Id. at 320.)

4 The Court’s operative formulation is: “section 425.16 cannot be invoked by a defendant whose
5 assertedly protected activity is illegal as a matter of law and, for that reason, not protected by
6 constitutional guarantees of free speech and petition.” (Flatley v. Mauro, supra, 39 Cal.4th at
7 p. 320.) Read in tandem with Action Apartment, supra, 41 Cal.4th at pp. 1242–1247, the FAC’s
8 procurement-by-deception theory falls outside the “valid” petitioning Flatley and § 425.16, subd.
9 (a), were enacted to immunize — even before reaching step two’s probability standard.

10 Extrinsic fraud on the tribunal is a recognized common-law tort with criminal analogs: Penal Code
11 § 132 (offering false evidence), § 134 (preparing false evidence), and § 182 (conspiracy). See
12 Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704-705 (filing a knowingly false police report
13 is illegal as a matter of law and not protected activity). The two-phase pattern pleaded — out-of-
14 court lulling followed by induced court-facing misrepresentation — mirrors the conduct Lefebvre
15 held unprotected.

16 Plaintiff does not rest the Anti-SLAPP opposition primarily on Flatley. The primary defeater is
17 the Bonni/Park step-one analysis set out in Sections I-A, II, and II-A above. Flatley operates as
18 a secondary backstop only if the court concludes that any specific court-facing act survives the
19 gravamen parse.

20 **C. Action Apartment: The Extrinsic Fraud Exception**

21 Defendants’ briefing does not discuss Action Apartment Ass’n v. City of Santa Monica (2007) 41
22 Cal.4th 1232, 1242-1247, which establishes that **extrinsic fraud is an exception** to the litigation
23 privilege.

24 At 41 Cal.4th 1242, the Court discussed Silberg and Albertson and clarified the boundaries of the
25 litigation privilege in the context of fraud on the court.

26 This exception is mandatory. Defendants cannot cite Flatley without addressing Action Apartment.
27

V. STEP TWO: MINIMUM-MERIT SHOWING IF REACHED

Defendants contend that if prong one is satisfied, Plaintiff cannot meet prong two’s probability standard. (Anti-SLAPP MPA, pp. 12–13 [citing Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244–1245 and arguing the privilege defeats probability].)

Step two asks only whether Plaintiff has stated and substantiated a legally sufficient claim with “minimum merit” — a low bar. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820 [“not insubstantial”]; Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89 [prima-facie standard]; Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244-1245.)

V.A The Minimum-Merit Showing

The four elements of extrinsic fraud are: (1) a deliberate deception or concealment by the opposing party or its agents; (2) operating outside the adversary contest such that the complaining party was prevented from fully presenting a claim or defense; (3) actual and reasonable reliance; and (4) resulting prejudice from the lost procedural opportunity. Each element is mapped to a specific paragraph of Plaintiff’s Declaration (Ex. 1 to these Oppositions):

Element	Specific Factual Assertion	Declaration Pin-Cite
(1) Deliberate deception/concealment	Out-of-court representations that authentication of evidence was uncontested, followed by stripped-file transfer to successor counsel on May 4, 2023 substitution	Pl. Decl. ¶¶ 7–10, 15

Element	Specific Factual Assertion	Declaration Pin-Cite
(2) Operating outside the adversary contest	Lulling communications occurred off-record, directed to Plaintiff personally; file-transfer concealment occurred between law firms, outside any courtroom proceeding	Pl. Decl. ¶¶ 7–10, 15–17
(3) Actual and reasonable reliance	Plaintiff forwent pre-trial authentication, subpoena, and continuance motion practice in reliance on the out-of-court posture	Pl. Decl. ¶¶ 11–13, 18–19
(4) Prejudice from lost procedural opportunity	Induced exclusion of evidence; denied continuance; closed discovery window; loss of specific subpoena/authentication opportunity	Pl. Decl. ¶¶ 18–20

V.A-1 Minimum Merit for Count 7 (Constructive Fraud) on the Proposed SAC

If the Court reaches step two as to **Count 7**, the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements are supported by the same prima facie core as extrinsic fraud: the **Nine-Point Receipt Chain** (Exhibit 2 / Pl. Decl. Section I-B), Plaintiff’s **officer-of-the-court reliance** paragraphs (Pl. Decl. ¶¶ 31–32), the **February 28, 2025** officer-of-the-court colloquy (Hr’g Tr. pp. 291–294), and the **April 16, 2025** admission (RT 7, p. 213, ll. 13–15). Those record anchors supply a confidential or fiduciary advantage, breach, inducement, and harm at the low Navellier / Oasis West threshold.

V.B Step Two Evidentiary Showing If Reached

If the court reaches step two, Plaintiff's minimum-merit showing rests on an unrebutted evidentiary triad:

1. **Defendants' own Anti-SLAPP Demurrer MPA (p.6)**, admitting the file transfer occurred "without ensuring proper documentation." This is party-admission-grade evidence of the noncommunicative institutional act at the center of the FAC.
2. **Plaintiff's Declaration**, establishing (a) the out-of-court lulling communications and the dates and counterparties, (b) the May 4, 2023 substitution timeline, and (c) what Plaintiff would have done differently (subpoena, authentication, continuance) absent the lulling.
3. **Trial transcript**, reflecting the court-facing shift by successor counsel as to evidence profferance and the ensuing evidentiary ruling that excluded the evidence.

The Nine-Point Receipt Chain (Audacity Exhibit)

#	Date	Proof Artifact	Pincite / Source
1	Aug. 18, 2022	Service of 911 audio by Dolan to CSK	Jessup Tr. Feb. 18, pp. 139-140
2	Aug. 18, 2022	Rosario deposition — Chambers present	Rosario depo tr.
3	Sept. 30, 2022	Abdelhalim deposition — Chambers present	Abdelhalim depo tr.
4	May 4, 2023	CSK → PSA file transfer	Substitution of Attorney
5	Feb. 1, 2024	PSA subpoena for identical materials	Order CA1147102-021

#	Date	Proof Artifact	Pincite / Source
6	Feb. 26, 2024	PSA receives production from SFPD	Report 210079556
7	Sept. 9, 2024	Plaintiff's FROG/SROG served on Reyna	Discovery records
8	Feb. 18, 2025	Jessup confirms Dolan copy since 2021	Hr'g Tr. p. 139
9	Apr. 16, 2025	ADMISSION OF RECEIPT	RT 7, p. 213

This triad establishes a prima facie case of extrinsic fraud. Under *Oasis West*, 51 Cal.4th at 820 and *Navellier*, 29 Cal.4th at 88-89, that is all step two requires.

V.C Scienter Established by the Seventeen-Page Whipsaw

Plaintiff has more than a minimum of merit on the fraud-on-the-court element because the **scienter admission is in Defendants' own mouths**, seventeen pages apart on a single hearing transcript:

- **Feb. 18, 2025, p. 141:** “our office did not receive the 911 call until the day of the MSC... this is news to me.”
- **Feb. 18, 2025, p. 181:** “we oppose the continuance... the body cam footage, the 911 call, all this stuff has been in his possession since August.”

The intra-hearing contradiction—made by the **same attorney** on the **same day**—forecloses the “ignorance” element of judicial estoppel under *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422. The casual phrasing of Position B (“for whatever, sure”) on April 16, 2025 (RT 7, p. 213) demonstrates that the Dolan origin was a **known, settled fact** within the defense team—not a recent discovery. This is minimum merit on scienter.

V.D Prima-Facie Tribunal Finding on Authentication

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt. On a demurrer or prong-two inquiry, the tribunal’s own finding establishes prima facie authentication by acquiescence under Evidence Code § 1414(b).

V.E Plaintiff’s Contemporaneous Preservation

Plaintiff’s contemporaneous diligence is documented on the transcript:

- **Jan. 27, 2025:** “We have two 911 records that the Defense has been trying to suppress.” (Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)
- **Jan. 27, 2025:** “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025, p. 42, ll. 1–8.)
- **Feb. 18, 2025:** “this denial and this delay is very convenient.” (Hr’g Tr. Feb. 18, 2025, p. 166, ll. 1–9.)
- **Feb. 18, 2025:** “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

This contemporaneous record establishes element 3 (reasonable reliance) of City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493: Plaintiff spoke up and was denied relief, which is why his reliance on the prior 883-day silence was reasonable.

V.F — How the SAC Strengthens (But Does Not Replace) the Prong-Two Showing

If the Court reaches prong two, the proposed SAC (offered for the limited purpose stated in § I.F) supplies two pleading advantages that further exceed the minimum- merit threshold without altering the injury-producing acts:

1. **Count 7 (constructive fraud, Civ. Code § 1573; Assilzadeh, supra, 82 Cal.App.4th at p. 415) is scienter-light.** It rests on duty-of-candor breach and the Nine-Point Receipt Chain without requiring proof of intent to deceive, and therefore survives any residual privilege or intent-based attack on Counts 2–3.

1 2. **Count 4 (SAC ¶ 141A) pleads conspiracy only as a joint-liability theory attaching to un-**
2 **derlying torts.** (Applied Equipment, supra, 7 Cal.4th 503.) This forecloses the “freestanding
3 conspiracy tort” objection defendants telegraph.

4 Neither refinement changes the prong-one gravamen already briefed above; they confirm that on
5 the merits the case is more than “minimally” meritorious.

7 **VI. PRECLUSION SUBSECTION: REJECT SINGH WITHOUT CROW-** 8 **LEY**

9 **A. Defendants’ Collateral Estoppel Argument**

10 Defendants invoke F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, Wouldridge v. Burns
11 (1968) 265 Cal.App.2d 82, and Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for a collateral-
12 attack / issue-preclusion shell. (Anti-SLAPP MPA, p. 14, ll. 1–18.)

13 Defendants cite Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for the proposition that “col-
14 lateral estoppel precludes relitigation of issues argued and decided in prior proceedings.”

15 **B. Defendants Ignore the Mandatory Crowley Analysis**

16 Singh requires an exact **issue match**. Under Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682,
17 the Court must map the parties, issues actually litigated, and primary rights enforced. Mycogen
18 Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904 confirms California’s primary-right test; Boeken
19 v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798 reinforces that the same primary right must
20 have been at stake in both actions.

21 **The underlying trial** adjudicated the primary right to be free from negligent conduct (car collision
22 liability).

23 **This FAC** asserts the primary right to a fair adversary hearing, free from extrinsic fraud.

24 These are different primary rights. The jury never decided: - Whether the defense withheld pro-
25 duction history during the file transfer - Whether misrepresentations about evidence provenance
26 were made to the judge - Whether those misrepresentations induced procedural rulings

27 Collateral estoppel separately requires that the issue have been “**necessarily decided**” in the prior
28 case. (Lucido v. Superior Court (1990) 51 Cal.3d 335, 341-342.) Extrinsic fraud on the tribunal

— by definition operating outside the merits adjudication — was not and could not have been necessarily decided by a negligence verdict.

Collateral estoppel does not apply without issue-match and necessary decision. Defendants cannot invoke Singh without Crowley, Mycogen, Boeken, and Lucido.

C. Commercial Speech / Insurance Course of Business

Independently, concealment of production history was an administrative, file-management failure by a commercial insurer (CSAA) during a change of vendors (law firms). Under any reasonable classification, such administrative, custodial conduct by a commercial insurer is unprotected business conduct, not petitioning activity within § 425.16(e). Insurance course-of-business administration does not gain protected-activity status merely because it happens to sit adjacent to a covered claim in litigation.

VII. INSURANCE-CHANNEL MISREAD: MORADI-SHALAL PRESERVES FRAUD JURISDICTION

A. Defendants’ Implicit Position

Defendants implicitly argue that Plaintiff cannot sue an insurer as a third party, relying on Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 and companion cases in their coordinated demurrer. (Demurrer MPA, p. 14, ll. 17–24.) The Anti-SLAPP papers channel the same insurer/counsel immunity themes through privilege and “protected activity” labels. (Anti-SLAPP MPA, pp. 8–10 [§ 47(b) overlay and gravamen rhetoric].)

B. Moradi-Shalal Preserves Common Law Fraud Jurisdiction

Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, specifically at **page 305**, explicitly preserves common law fraud jurisdiction against insurers.

Defendants rely on Shaolian (an assignment case) while ignoring the California Supreme Court’s explicit carve-out for fraud claims. The FAC alleges **institutional agency** under Civil Code section 2338, not a generic third-party claim.

VIII. FEES (FOOTNOTE)

Plaintiff reserves, but does not press at this stage, any request under Code of Civil Procedure § 425.16(c)(1).¹

IX. CONCLUSION

Defendants' Anti-SLAPP motion fails at every stage:

Step One: Defendants skip the mandatory Park gravamen analysis. The FAC's gravamen is extrinsic fraud and tribunal reliance, not "speech or petitioning activity itself." Noncommunicative institutional acts fall outside the litigation privilege under Kimmel.

Privilege Exceptions: Defendants ignore Flatley's illegal-conduct exception and Action Apartment's extrinsic fraud exception.

Preclusion: Defendants invoke Singh without performing Crowley's primary rights mapping. The FAC asserts a different primary right than the underlying negligence trial.

Insurance Channel: Moradi-Shalal preserves common law fraud jurisdiction, which Defendants ignore.

For these reasons, Plaintiff respectfully requests the Court deny the Special Motion to Strike in its entirety.

X. RELIEF REQUESTED

Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

1. **Deny the Special Motion to Strike** in its entirety;
2. **Alternatively, grant leave to amend** consistent with Section XI;
3. **Sustain Plaintiff's objections to Defendants' Request for Judicial Notice** as set forth in the companion Objection;
4. **Sustain Plaintiff's evidentiary objections** to the supporting declarations as set forth in the companion Evidentiary Objections; and

¹Section 425.16(c)(1) permits a fees award to a prevailing plaintiff only where the motion is frivolous or solely intended to cause unnecessary delay. Plaintiff does not seek fees on this opposition and notes the issue only to preserve it. The primary relief requested is denial of the motion on the doctrinal grounds set out above.

1 5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary
2 Objections.
3 _____

4 **XI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY**

5 Should the Court conclude that any sub-allegation requires further specificity, leave to amend
6 would cure any identified deficiency. Plaintiff proffers, on leave to amend: (1) the dates and con-
7 tent of specific CSAA directives to defense counsel concerning authentication, provenance, and
8 production history of 911 audio and CAD records, including the CSAA personnel issuing each
9 directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the
10 May 4, 2023 substitution and the specific categories of production-history materials not conveyed;
11 and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff
12 relied to defer authentication, subpoena, and sequencing steps.

13 These particulars confirm that amendment would not be futile. Under *Baral v. Schnitt* (2016) 1
14 Cal.5th 376, 396, striking under § 425.16 is confined to allegations of protected activity; the claim
15 as a whole survives if it rests substantially on unprotected conduct. Any residual imprecision in
16 pleading the unprotected core can be cured by the proffered specificity, and the request for leave is
17 consistent with the liberal amendment standard.

18 _____
19 **DATED:** April 16, 2026

20 Respectfully submitted,
21 _____

22 FRANCISCUS DYLAN ROSARIO
23 _____

EXHIBIT 1: GRAVAMEN MATRIX (EXPANDED)

Defense Characterization vs. FAC Allegations Under Park

#	Defense Abstraction (Anti-SLAPP MPA)	FAC Actual Allegation	True Gravamen (Park/Bonni Analysis)	Protected Activity?	Specific FAC Paragraph
1	“Privileged litigation conduct” (p.12, l.28)	Out-of-court communica- tions inducing reliance on evidence resolution	Extrinsic fraud channel	NO	FAC ¶¶ 2, 29–33
2	“Litigation activity” (p.7, l.8)	File transfer without proper production history conveyance	Noncommunicat institutional conduct	NO	FAC ¶¶ 34–39
3	“Judicial proceeding” (p.12, l.28)	Misrepresentation to Court about receipt and provenance	Tribunal reliance, process corruption	Exception applies (Flat- ley/Lefebvre)	FAC ¶¶ 40–47

#	Defense	FAC Actual Allegation	True	Protected Activity?	Specific FAC Paragraph
	Abstraction (Anti-SLAPP MPA)		Gravamen (Park/Bonni Analysis)		
4	“Defending the insured” (p.13, l.2)	CSAA direction and ratification of deceptive conduct as principal	Agency liability, Civ. Code § 2338	NO	FAC ¶¶ 7, 48–55
5	“Protected petitioning” (implied throughout)	Procedural-window narrowing through induced rulings	Structural hearing impairment	NO	FAC ¶¶ 46–47
6	“Communication made during proceedings” (p.9, l.17)	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme	Exception applies	FAC ¶¶ 2, 45

Eight Sentences from Defendants’ MPA That Misstate California Law

#	Location	Sentence	Why It Misstates the Law
1	p.8, l.4-6	Digerati extends privilege to pre-litigation statements	Digerati addresses communications; does not subsume noncommunicative fraud channels
2	p.9, ll.17-21	Flatley finality paragraph as universal bar	Omits Flatley's illegal-conduct exception
3	p.12, ll.27-28	Pollock resolves doubts in favor of privilege	Pollock only applies after privilege coverage is established; does not delete Park
4	p.13, ll.20-22	Park supports Anti-SLAPP for any litigation-related claim	Park requires gravamen isolation, which Defendants skip
5	p.13, ll.25-26	Singh collateral estoppel as automatic bar	Singh requires issue-match under Crowley
6	p.8, ll.17-19	Bergstein protects all litigation statements	Does not address extrinsic fraud exception
7	p.12, l.11	Briggs equalizes section 425.16 and section 47(b)	Coordination does not erase exceptions in either doctrine

#	Location	Sentence	Why It Misstates the Law
8	p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations and cannot be made at this stage

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Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com